

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                 |                           |                                                       |                                               |                                            |
|--------------------------------------------------|---------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Sophia Manuel                   | Team:<br>Team # 4                                                               | CCRB Case #:<br>201405654 | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                  |                                                                                 |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 06/06/2014 2:30 PM   | Location of Incident:<br>6th Avenue and 40th Street; 72nd Precinct stationhouse | 18 Mo. SOL<br>12/6/2015   | Precinct:<br>72                                       |                                               |                                            |
| Date/Time CV Reported<br>Mon, 06/09/2014 1:53 PM | CV Reported At:<br>CCRB                                                         | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 06/09/2014 1:53 PM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)        | Shield | TaxID  | Command |
|---------------------------|--------|--------|---------|
| 1. POM Ryan Staiano       | 29269  | 945027 | 072 PCT |
| 2. POM Frank Dileo        | 06263  | 918947 | 072 PCT |
| 3. POM Vincent Ciardiello | 02278  | 947904 | PSA 1   |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. SGT Gary Caporale  | 01945     | 928013 | 072 PCT  |
| 2. POM Sean Spencer   | 04482     | 929199 | 072 PCT  |
| 3. POM Michael Damico | 19063     | 932511 | 072 PCT  |

| Officer(s)                 | Allegation                                                                                                                                     | Investigator Recommendation |
|----------------------------|------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Ryan Staiano       | Abuse: At 40th Street and 6th Avenue in Brooklyn, PO Ryan Staiano stopped the car in which § 87(2)(b) was an occupant.                         | A . Unsubstantiated         |
| B . POM Vincent Ciardiello | Abuse: At 40th Street and 6th Avenue in Brooklyn, PO Vincent Ciardiello stopped the car in which § 87(2)(b) was an occupant.                   | B . Unsubstantiated         |
| C . POM Vincent Ciardiello | Force: At 40th Street and 6th Avenue in Brooklyn, PO Vincent Ciardiello used physical force against § 87(2)(b)                                 | C . Unsubstantiated         |
| D . POM Frank Dileo        | Force: At 40th Street and 6th Avenue in Brooklyn, PO Frank Dileo used physical force against § 87(2)(b)                                        | D . Unsubstantiated         |
| E . POM Vincent Ciardiello | Discourtesy: At 40th Street and 6th Avenue in Brooklyn and at the 72nd Precinct stationhouse, PO Vincent Ciardiello spoke rudely to § 87(2)(b) | E . Unsubstantiated         |
| F . POM Vincent Ciardiello | Abuse: At 40th Street and 6th Avenue in Brooklyn, PO Vincent Ciardiello searched the car in which § 87(2)(b) was an occupant.                  | F . Substantiated           |
| G . POM Ryan Staiano       | Abuse: At 40th Street and 6th Avenue in Brooklyn, PO Ryan Staiano searched the car in which § 87(2)(b) was an occupant.                        | G . Unsubstantiated         |
| H . POM Vincent Ciardiello | Abuse: At the 72nd Precinct stationhouse, PO Vincent Ciardiello did not obtain medical treatment for § 87(2)(b)                                | H . Unsubstantiated         |
| § 87(4-b) § 87(2)(g)       |                                                                                                                                                |                             |
|                            |                                                                                                                                                |                             |

### Case Summary

On June 6, 2014, at approximately 2:30 p.m., PO Ryan Staiano and PO Vincent Ciardiello of the 72<sup>nd</sup> Precinct pulled over § 87(2)(b)'s minivan at 40<sup>th</sup> Street and 6<sup>th</sup> Avenue in Brooklyn (**Allegations A and B**). § 87(2)(b) was removed from the minivan. PO Ciardiello allegedly handcuffed him and then pulled § 87(2)(b)'s arms up and twisted them, causing the handcuffs to tear § 87(2)(b)'s skin and injure his wrist (**Allegation C**). PO Frank Dileo allegedly hit the back of § 87(2)(b)'s neck, causing his head to hit the side of the car and his Bluetooth and glasses to fall to the ground (**Allegation D**). When § 87(2)(b) told PO Ciardiello to pick up the items, PO Ciardiello allegedly replied, "I don't care. They stay there. Fuck you." PO Ciardiello also allegedly used profanity towards § 87(2)(b) at the 72<sup>nd</sup> Precinct stationhouse (**Allegation E**). PO Ciardiello and PO Staiano searched § 87(2)(b)'s car (**Allegations F and G**). § 87(2)(b) was arrested and charged with § 87(2)(a) 160.50. § 87(2)(b). PO Ciardiello allegedly refused to obtain medical attention for him at the 72<sup>nd</sup> Precinct stationhouse (**Allegation H**). § 87(2)(b) was treated for injuries at § 87(2)(b) the same day (complaint encl. 6-7; arrest report encl. 62-64). § 87(2)(b).

This case was originally assigned to Inv. Eva Vaillancourt. Upon her departure from the CCRB in December, 2014, this case was reassigned to Inv. Sophia Manuel.

### Mediation, Civil and Criminal Histories

As of February 20, 2015, § 87(2)(b) did not file a Notice of Claim with the city of New York regarding this incident (encl. 100a). This case was not eligible for mediation because § 87(2)(b) sustained injuries, his property was damaged, and he was arrested. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- PO Staiano has been a member of the NYPD for seven years and has not been the subject of any prior CCRB allegations (encl. 4).
- PO Ciardiello has been a member of the service for six years. He has been the subject of 17 prior CCRB allegations, two of which were substantiated and six of which were for physical force. § 87(2)(g)
  - In CCRB case 200915169, an allegation that PO Ciardiello said, "Shut the fuck up," and, "Go fuck yourself," was substantiated, for which the board recommended charges and the NYPD issued command discipline.
  - In CCRB case 201111179, a threat of arrest allegation was substantiated. The board recommended command discipline, and the NYPD issued instructions.
  - In CCRB case 201409829, he was accused of kicking the complainant's stomach as the complainant lay on the ground in handcuffs. The allegation was closed as complainant uncooperative.
  - In CCRB case 201310693, he was accused of pushing a complainant. The allegation was closed as complainant uncooperative.

- In CCRB case 201205163, an allegation that he pushed the complainant was exonerated. In case 201115805, an allegation that he placed handcuffs on a complainant too tightly was unfounded.
  - In case 201103940, an allegation of unspecified physical force was closed as complaint withdrawn.
- PO Dileo has been a member of the NYPD for 17 years. He has been the subject of five CCRB allegations, one of which was substantiated. In case 201212404, an allegation that he searched a vehicle was substantiated. The case is assigned to the Administrative Prosecution Unit. § 87(2)(g)
- This is the first CCRB complaint filed by § 87(2)(b) (encl. 5).

## **Findings and Recommendations**

### **Officer Identification**

- § 87(2)(b) alleged that the officer who stopped him, asked for his license and registration, and removed him from the car also used physical force against him, spoke rudely, searched his car, and refused to obtain medical attention for him. Because PO Staiano and PO Ciardiello each took responsibility for stopping § 87(2)(b) requesting his license and registration, removing him from the car, and searching the car, it was necessary to show a photo array to § 87(2)(b) in order to identify the subject officer. § 87(2)(b) selected the photo of PO Ciardiello and stated that he was the officer who initiated the incident and injured him (encl. 15-24). § 87(2)(g)
- § 87(2)(b) alleged that an older, bald, white male officer, who was not otherwise involved in the incident, came out of nowhere and hit him. PO Dileo acknowledged being present for the incident, but denied interacting with § 87(2)(b). As a § 87(2)(b) white male with a bald head, PO Dileo fit the description provided by § 87(2)(b). In the photo array, § 87(2)(b) selected PO Dileo's photo and stated that he hit § 87(2)(b) behind his neck while he was in handcuffs (encl. 15-24). § 87(2)(g)
- § 87(2)(b) alleged that a second officer, who he could not describe, searched his car with PO Ciardiello. PO Staiano acknowledged searching § 87(2)(b)'s car. § 87(2)(g)

### **Allegations Not Pleaded**

- § 87(2)(g)
- § 87(2)(g)

**Allegation A – Abuse of Authority: At 40<sup>th</sup> Street and 6<sup>th</sup> Avenue in Brooklyn, PO Ryan Staiano stopped the car in which § 87(2)(b) was an occupant.**

**Allegation B – Abuse of Authority: At 40<sup>th</sup> Street and 6<sup>th</sup> Avenue in Brooklyn, PO Vincent Ciardiello stopped the car in which § 87(2)(b) was an occupant.**

It is undisputed that PO Staiano and PO Ciardiello stopped § 87(2)(b)'s car. § 87(2)(g)



**Allegation D – Force: At 40<sup>th</sup> Street and 6<sup>th</sup> Avenue in Brooklyn, PO Frank Dileo used physical force against § 87(2)(b)**

§ 87(2)(g)

§ 87(2)(b) testified that officers pulled his car over and asked for his license and registration. § 87(2)(b) did not comply and asked why he was stopped. PO Ciardiello said he drove through a red light. § 87(2)(b) reached for his iPhone, which was clipped to his waistband. PO Ciardiello then opened the car door and pulled § 87(2)(b) out. He handcuffed § 87(2)(b) and pulled § 87(2)(b)'s hands up his back, causing pain as the handcuffs broke through his skin. PO Ciardiello pulled the handcuffs up and twisted § 87(2)(b)'s hands, while saying, "I'm going to do it real hard, real tight." PO Dileo came up behind § 87(2)(b) and hit the back of his neck with his forearm, causing § 87(2)(b)'s head to hit the car. His sunglasses fell to the ground, along with his Bluetooth device. § 87(2)(b) was not moving around or saying anything before being hit. § 87(2)(b)

PO Ciardiello testified that he approached § 87(2)(b)'s car with PO Staiano and asked for § 87(2)(b)'s license and registration. § 87(2)(b) refused and reached for his waistband on his right side, where PO Ciardiello could not see. Fearing that § 87(2)(b) was reaching for a gun, PO Ciardiello and PO Staiano pulled § 87(2)(b) out of the car. § 87(2)(b) was handcuffed for the officers' safety, but PO Ciardiello did not recall which officer handcuffed him. § 87(2)(b) resisted being handcuffed by pulling his arms in front of him, but the officers only had to pull on his arms to overcome his resistance. § 87(2)(b) was upset at being handcuffed, and may have continued to pull his arms forward once he was in handcuffs. PO Ciardiello denied pulling or twisting § 87(2)(b)'s arms or handcuffs up once § 87(2)(b) was in handcuffs. He denied seeing any officer do this. He denied using any force against § 87(2)(b) once he was in handcuffs. He denied doing anything that could have caused injuries to § 87(2)(b)'s wrist and suggested that § 87(2)(b) pulling on the handcuffs while being handcuffed and after being placed in handcuffs might have caused the injuries. PO Ciardiello denied that he, PO Staiano, or PO Dileo hit § 87(2)(b). He did not know whether PO Dileo interacted with § 87(2)(b). He never saw injuries on § 87(2)(b). He did not see § 87(2)(b)'s Bluetooth device, but he saw § 87(2)(b)'s sunglasses fall off his head. PO Ciardiello picked them up (encl. 32-38b).

PO Staiano testified that he and PO Ciardiello approached § 87(2)(b)'s car and asked for his license and registration. § 87(2)(b) refused. PO Staiano saw an empty beer bottle in the car. § 87(2)(b) yelled, causing a crowd to gather. PO Staiano asked § 87(2)(b) to exit the minivan. He wanted to arrest § 87(2)(b) for going through a red light, disorderly conduct, and open container. § 87(2)(b) refused to exit the car, so PO Staiano and PO Ciardiello pulled him out and handcuffed him. PO Staiano did not recall if § 87(2)(b) continued to struggle after being handcuffed. He denied yanking the handcuffs up § 87(2)(b)'s arms, hitting § 87(2)(b) or seeing another officer do so. He did not see § 87(2)(b)'s Bluetooth or sunglasses fall to the ground. He did not suspect that § 87(2)(b) was armed, but he thought he was intoxicated because of the empty bottle and yelling. § 87(2)(b) was irate until he was placed in the prisoner van (encl. 25-31).

PO Dileo denied having any interaction with § 87(2)(b). He parked his van half a block from § 87(2)(b)'s car. While PO Staiano exited the van and arrested § 87(2)(b), PO Dileo remained standing at his van. PO Dileo could not hear the interaction between § 87(2)(b) and officers, nor

could he see what was happening clearly. He did not recall if an officer hit § 87(2)(b) (encl. 45-49).

Sgt. Caporale and PO Spencer testified that they responded to the incident location after they heard over the radio that PO Ciardiello or PO Staiano had arrested § 87(2)(b). When they arrived, § 87(2)(b) was in handcuffs. PO Spencer denied seeing any injuries on § 87(2)(b) or hearing him complain about injuries. Sgt. Caporale said § 87(2)(b) complained that his hand hurt at the stationhouse, but Sgt. Caporale did not see swelling to § 87(2)(b)'s hand (encl. 39-44; 50-55). PO Damico had no recollection of the incident (encl. 56-58b).

§ 87(2)(b)'s entry in the command log states that § 87(2)(b)'s physical/mental condition was "normal / pain to wrist." It says that he did not request medical attention and that at 3:15 p.m., he refused medical attention (encl. 76).

§ 87(2)(b) visited § 87(2)(b) on § 87(2)(b), after he was released from police custody. § 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

No officer acknowledged seeing or using the force that § 87(2)(b) alleged. He did not provide the CCRB with photos of his sunglasses or Bluetooth device, which allegedly broke as a result of the force. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is, therefore, recommended that **Allegations C and D be closed as unsubstantiated.**

**Allegation E – Discourtesy: At 40<sup>th</sup> Street and 6<sup>th</sup> Avenue in Brooklyn and at the 72<sup>nd</sup> Precinct stationhouse, PO Vincent Ciardiello spoke rudely to § 87(2)(b)**

§ 87(2)(g)

§ 87(2)(b) alleged that after his sunglasses and Bluetooth device fell on the ground, he told PO Ciardiello to pick them up. PO Ciardiello said, "I don't care. They stay there. Fuck you." Another officer § 87(2)(b) picked the photo of PO Michael Damico in the photo array for this officer) picked them up and put them in his car. At the stationhouse, PO Ciardiello approached § 87(2)(b) in the holding cell and said, "What is your fucking deal?" "Fuck you," and "I don't give a shit." § 87(2)(b) accused PO Ciardiello of having broken his hand. PO Ciardiello asked him to open and close his fist. § 87(2)(b) said that he could not. PO Ciardiello said his hand was not broken. § 87(2)(b) asked if PO Ciardiello was a doctor, and PO Ciardiello said, "Fuck you. I don't give a shit. I hope you rot in there" (encl. 8-14).

PO Ciardiello denied using any profanity towards § 87(2)(b) or hearing any other officer do so. He said that when § 87(2)(b)'s sunglasses fell of his head as a result of the struggle to handcuff him, PO Ciardiello picked them up and put them in § 87(2)(b)'s car. He denied saying anything as he did so. He acknowledged talking with § 87(2)(b) in the holding cell area, but denied using profanity (encl. 32-38b).

PO Staiano denied using profanity towards § 87(2)(b) or hearing any officer use profanity towards him. PO Staiano did not recall § 87(2)(b)'s Bluetooth device or sunglasses falling to the ground. He saw § 87(2)(b) at the stationhouse, but did not speak to him (encl. 25-31). PO Spencer did not hear any officer use profanity to § 87(2)(b). He saw § 87(2)(b) at the stationhouse, but did not hear him say anything (encl. 39-44). PO Dileo denied being close enough to § 87(2)(b) and the officers to hear anything that they were saying. He did not see § 87(2)(b) at the stationhouse (encl. 45-49). Sgt. Caporale denied hearing any officer use profanity (encl. 50-55). PO Damico had no recollection of the incident (encl. 56-58b).

§ 87(2)(g)

It is recommended that **Allegation E be closed as unsubstantiated.**

**Allegation F- Abuse of Authority: At 40<sup>th</sup> Street and 6<sup>th</sup> Avenue in Brooklyn, PO Vincent Ciardiello searched the car in which § 87(2)(b) was an occupant.**

**Allegation G – Abuse of Authority: At 40<sup>th</sup> Street and 6<sup>th</sup> Avenue in Brooklyn, PO Ryan Staiano searched the car in which § 87(2)(b) was an occupant.**

It is undisputed that PO Ciardiello searched § 87(2)(b)'s car and that PO Staiano removed items from the car. § 87(2)(g)

§ 87(2)(b) testified that there was an empty Heineken bottle in the back seat, but he had not consumed any alcohol that day. PO Ciardiello pulled him over and accused him of running a red light. § 87(2)(b) loudly protested the stop. PO Ciardiello began to yell. § 87(2)(b) reached for his phone, which was clipped to his waistband. PO Ciardiello then pulled him out of the car and handcuffed him. PO Staiano and PO Ciardiello searched § 87(2)(b)'s minivan. He could not see where they searched, but he saw part of their bodies inside the minivan. He knew the officers opened the closed center console because he was charged with possession of the prescription medication inside the console. Later, when he was released from the stationhouse and returned to his minivan at the scene of the arrest, he found that it had been ransacked (encl. 8-14).

PO Staiano testified that when he and PO Ciardiello reached § 87(2)(b)'s window on foot, § 87(2)(b) was yelling, "You're harassing me!" He continued yelling throughout the incident, causing a crowd of approximately 15 people to form within five feet of the officers. PO Staiano observed a glass Heineken bottle in the cup holder between the two front seats. He asked § 87(2)(b) about the bottle. § 87(2)(b) said something like, "I'm not drinking that right now." The bottle, combined with § 87(2)(b)'s irate behavior, led PO Staiano to believe that § 87(2)(b) was intoxicated. Nothing else indicated that § 87(2)(b) had consumed alcohol. After § 87(2)(b) refused multiple requests for his identification, PO Staiano ordered him out of the car. Officers handcuffed him and placed him in a prisoner van. He was under arrest for § 87(2)(b). PO Staiano did not observe any bulges on § 87(2)(b) and had no reason to believe he was armed. PO Staiano moved § 87(2)(b)'s car to a legal

parking space. He removed the Heineken bottle, at which point he realized that it was empty. He also removed a bottle of pills which he saw in plain view in a cup holder. He denied searching the car beyond removing two items (encl. 25-31).

PO Ciardiello said that he approached the minivan on foot with PO Staiano. He corroborated PO Staiano's testimony that § 87(2)(b) was irate, but he did not notice if a crowd formed. PO Ciardiello and PO Staiano removed § 87(2)(b) from the car and handcuffed him for their safety because § 87(2)(b) had reached for his waistband inside the car, where PO Ciardiello could not see. § 87(2)(b) resisted arrest, so the officers decided to arrest him for resisting arrest. At that point, there were no other charges against § 87(2)(b). PO Ciardiello and PO Staiano frisked and searched his waistband. After § 87(2)(b) was placed in the prisoner van, PO Ciardiello and PO Staiano searched § 87(2)(b)'s minivan for a weapon because § 87(2)(b) had reached for his waistband. PO Ciardiello had no reason to suspect that there were drugs or alcohol in the car. The officers looked in the center console, between the seats, in the visors, under the mats, and in the door handles. They saw a 24-ounce bottle in the open center console area. PO Ciardiello did not see any prescription drugs and did not know that PO Staiano found any. PO Ciardiello did not know what was done with § 87(2)(b)'s car after the search (encl. 32-38b).

§ 87(2)(a) 160.50

Once a suspect has been removed from a vehicle, and nothing has occurred to elevate suspicion, an officer must demonstrate a "substantial likelihood of a weapon on the car" in order to justify further intrusive action toward the car. Absent probable cause, it is unlawful for a police officer to invade the interior of a stopped vehicle once the suspects have been removed and patted down without incident, as any immediate threat to the officers' safety has been eliminated. People v. Baksh, 2014 N.Y. App. Lexis (encl. F-H).

New York Vehicle and Traffic Law § 1227 prohibits the drinking of alcoholic beverages or the possession of an open container containing an alcoholic beverage in a motor vehicle on a public highway (encl. K-L). The observation of an open container of alcohol in plain view, together with other factors supplying probable cause that a violation has occurred, is sufficient to search a vehicle for additional containers of alcohol. People v. Martin, 50 A.D.3d 1169 (2008) (encl. D-E).

§ 87(2)(g)

It is, therefore, recommended that **Allegation F be substantiated.**

§ 87(2)(g)



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\_\_\_\_\_ it is recommended that  
**Allegation G be unsubstantiated.**

did not obtain medical attention for § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) testified that when he was in the holding cell, his wrists and arms began to swell and he thought his hands might have been broken. He asked an officer who he could not describe for medical attention. The officer did not respond. Fifteen minutes later, PO Ciardiello appeared and cursed at him. A different officer came and convinced him to forego treatment. However, when PO Ciardiello returned to the holding cell area several hours later, § 87(2)(b) accused PO Ciardiello of breaking his hand and said that he wanted to be taken to the hospital. PO Ciardiello said, "Go like this," and indicated that he open and close his fist. § 87(2)(b) said that he could not. PO Ciardiello told him that his hand was not broken. § 87(2)(b) asked PO Ciardiello if he was a doctor. PO Ciardiello said, "Fuck you. I don't give a shit. I hope you rot in there," and left. He did not obtain medical attention for § 87(2)(b) (encl. 8-14).

§ 87(2)(b) said, "I'm fine." § 87(2)(b) did not complain that his hand was broken or that he needed medical attention. PO Ciardiello did not see any injuries on § 87(2)(b) (encl. 32-38b).

§ 87(2)(g)

It is, therefore, recommended that **Allegation H be unsubstantiated.**

§ 87(4-b) § 87(2)(g)

Team: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature                      Print                      Date

Supervisor: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date